



CHAPTER cxxxiii.

An Act to transfer the Hundred Bridges in the
Doddingtree Hundred in the county of Worcester to
the Worcestershire County Council and for other
purposes. A.D. 1905.
[4th August 1905.]

WHEREAS the Doddingtree Hundred (herein-after called "the hundred") is situate (with the exception of the parishes of Acton Beauchamp and Edwin Loach which have been transferred to the county of Hereford) in the county of Worcester and there are situate in the hundred two bridges spanning the River Teme known respectively as Ham Bridge in the parishes of Martley and Clifton-on-Teme carrying the main road from Worcester to Clifton-on-Teme and Stanford Bridge in the parishes of Stanford-on-Teme and Shelsley Kings carrying the main road from Stourport to Bromyard (which said bridges are herein-after called "the hundred bridges"):

And whereas the main roads from Worcester to Clifton-on-Teme and from Stourport to Bromyard are by virtue of the Local Government Act 1888 vested in and repairable by the Worcestershire County Council (herein-after called "the County Council"):

And whereas as a general rule county bridges were by the Local Government Act 1888 like the main roads transferred to the county council of the county within which they are situate but the hundred bridges are an exception to this general rule having been from time immemorial and still remain repairable by the inhabitants of the hundred:

A.D. 1905.
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And whereas the hundred in addition to bearing the cost of repairing the hundred bridges contributes so far as concerns the parishes situate in the county of Worcester like the remainder of the county of Worcester to the repair of the county bridges in that county and so far as concerns the parishes situate in the county of Hereford to the repair of county bridges in that county :

And whereas the Ham Bridge is in a bad state of repair and the Stanford Bridge (which was built in the year 1797) is in a dangerous condition and quite unsuitable and not strong enough for the heavy traffic of the present day and owing to their condition there is a danger of the hundred bridges being washed away or damaged by floods to which the River Teme is very liable :

And whereas it is estimated that the cost of repairing Ham Bridge would be about fifty pounds and of repairing and rendering the Stanford Bridge suitable for modern traffic about two thousand pounds :

And whereas the hundred is wholly rural in character and the total rateable value of the parishes contained therein is seventy-two thousand three hundred and sixty-three pounds and a rate of one penny in the pound only produces about three hundred pounds :

And whereas it is believed that the County Council have contributed to the present dangerous state of the hundred bridges by hauling over them by locomotive traction the stone necessary for the repair of main roads vested in them :

And whereas the hundred is only liable to repair the hundred bridges and is not liable to improve them or render them more suitable for modern traffic :

And whereas if the bridges were repaired without being strengthened and improved they would remain unsuitable for locomotive and other heavy traffic and the County Council and others would have to refrain from using them for heavy traffic or incur the serious risk of damaging or possibly even breaking them down :

And whereas the County Council bring by means of locomotive traction and otherwise very large quantities of stone from the stone quarries at Cleehill in the county of Salop for

the repair of the main roads in the north-west portion of the county of Worcester and a large quantity of this stone has to be brought over the hundred bridges as there is no convenient railway communication : A.D. 1905.

And whereas the County Council have had under consideration the legality of themselves defraying or contributing to the cost of repairing rebuilding widening and enlarging the hundred bridges and it has been ascertained that they have no legal right to do so and it is very desirable that the hundred bridges should be transferred to and vested in the County Council and hereafter be maintained and repaired by the County Council as county bridges :

And whereas for the safety of the public the County Council have prior to the passing of this Act found it necessary to lay out moneys and incur expense in at once repairing rebuilding widening and enlarging the hundred bridges and it is desirable that the expense so incurred should be defrayed out of the county fund :

And whereas it is expedient to confer on the County Council such further powers in relation to bridges as are herein-after contained :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the eighth day of April 1905 after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Worcestershire Advertiser* and *Kidderminster Times* being local newspapers published and circulating in the county of Worcester such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be paid in the first instance out of the county fund and be recouped to such fund by means of a rate to be levied upon the hundred :

And whereas such resolution was published twice in the said *Worcestershire Advertiser* and *Kidderminster Times* and other newspapers published or circulating in the county of Worcester and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole

A.D. 1905. number of the members of the County Council at a further special meeting held in pursuance of a similar notice on the twenty-ninth day of April 1905 being not less than fourteen days after the deposit of the Bill for this Act in Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. **1.** This Act may be cited as the Worcestershire County Council (*Bridges*) Act 1905.

Transfer of Ham and Stanford Bridges to County Council. **2.** On the passing of this Act the hundred bridges shall be by virtue of this Act transferred to and vested in the County Council and shall thereafter be maintained and repaired by the County Council as county bridges.

Expenses incurred by County Council prior to Act to be paid out of county fund. **3.** All costs charges and expenses incurred by the County Council prior to the passing of this Act in repairing rebuilding widening and enlarging either temporarily or permanently the hundred bridges shall be defrayed out of the county fund and shall be deemed to be expenses incurred by the County Council for highway purposes.

Power to contribute to improvement of other bridges. **4.** The County Council may if they think fit contribute or join with any other local or road authority or authorities or with any railway or other company body or person in contributing to the rebuilding widening or improvement of any bridge either in or partly in the county of Worcester belonging to any railway or canal company or proprietors of any navigation or to any other company body or person and to the widening or improvement of the approaches thereto and to the maintenance of such bridges and approaches. Any such contribution shall be paid out of the county fund.

Compensation to existing officers of hundred. **5.** If any officer of the hundred shall by virtue of this Act or of anything done in pursuance or in consequence thereof suffer any direct pecuniary loss as is mentioned in section 120 of the Local Government Act 1888 the provisions of that section shall apply to him with the substitution of the words "the Local Government Board" for the words "the Treasury" in subsections (4) and (6) and with such modification as may be necessary to make those provisions applicable and such com-

pensation shall be commuted by the County Council and in the first instance be paid out of the county fund and be together with and as part of the costs of this Act raised and recouped to the county fund by means of a rate levied by the County Council on the hundred as herein-after mentioned. A.D. 1905.

6. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall in the first instance be paid by the County Council out of the county fund and shall be recouped to the county fund by means of a rate or rates levied by the County Council on the hundred yearly or half-yearly over a period of one or more years as the County Council may determine. Costs of Act.

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